

3-4. 24CV00887 Gibson, Casey v. Aristotle Custom Homes LLC et al.

EVENT: (1) Plaintiff Casey Gibson's Motion for Summary Judgment or, in the Alternative, Summary Adjudication Against Defendant Greg Garbolinsky

(2) Plaintiff Casey Gibson's Motion for Summary Judgment or, in the Alternative, Summary Adjudication Against Defendant

Both motions for summary judgment are granted in their entirety.

Plaintiff's Request for Judicial Notice is GRANTED, which includes judicial notice of the admissions which were admitted as to both Defendants. Based on the admissions, the Court finds Plaintiff has met his initial burden of demonstrating no triable issue of fact on all essential elements and Plaintiff's alter ego theory.

It is well settled that judicial admissions are conclusive and eliminates the issue from the case. (See *The Travelers Indemnity Co. of Connecticut v. Navigators Specialty Ins. Co.* (2021) 70 Cal.App.5th 341, 360) As a result, in addition to the motions being unopposed, Defendants cannot demonstrate a triable issue of fact based on the admissions.

The Court will sign the proposed orders, striking the references to contempt.

The Trial Readiness Conference scheduled for July 15, 2026 and the Court Trial scheduled for July 20, 2026 are both vacated. A status conference is set for August 5, 2026 at 10:30am for status of judgment.

5. 25CV02804 Palacio, Alyssa v. Childers, Cheryl et al

EVENT: Defendants Home Living Skills, Incorporated and Cheryl Childer's Motion to Strike Portions of Plaintiff's Complaint

Meet and Confer

Plaintiff's arguments re: meet and confer are noted, however, CCP 435.5(a)(4) prohibits the Court from denying a motion on meet and confer grounds.